

specified date earlier than the date set out in the landlord's notice. 2006, c. 17, s. 49 (4).

Same

(5) The date for termination specified in the tenant's notice shall be at least 10 days after the date the tenant's notice is given. 2006, c. 17, s. 49 (5).

▼ Section Amendments with date in force (d/m/y)

Compensation, notice under s. 49 (1) or (2)

49.1 (1) A landlord shall compensate a tenant in an amount equal to one month's rent or offer the tenant another rental unit acceptable to the tenant if,

- (a) the landlord gives the tenant a notice of termination of the tenancy on behalf of a purchaser under subsection 49 (1) or (2); and
- (b) the notice of termination is given on or after the day the *Protecting Tenants and Strengthening Community Housing Act, 2020* receives Royal Assent. 2020, c. 16, Sched. 4, s. 5.

Obligation under subs. (1)

(2) Despite section 18, the obligation to compensate the tenant under subsection (1) remains an obligation of the landlord who gives the notice of termination of the tenancy on behalf of the purchaser and does not become an obligation of the purchaser. 2020, c. 16, Sched. 4, s. 5.

▼ Section Amendments with date in force (d/m/y)

Notice, demolition, conversion or repairs

50 (1) A landlord may give notice of termination of a tenancy if the landlord requires possession of the rental unit in order to,

- (a) demolish it;
- (b) convert it to use for a purpose other than residential premises; or
- (c) do repairs or renovations to it that are so extensive that they require a

building permit and vacant possession of the rental unit. 2006, c. 17, s. 50 (1).

Same

(2) The date for termination specified in the notice shall be at least 120 days after the notice is given and shall be the day a period of the tenancy ends or, where the tenancy is for a fixed term, the end of the term. 2006, c. 17, s. 50 (2).

Same

(3) A notice under clause (1) (c) shall inform the tenant that if he or she wishes to exercise the right of first refusal under section 53 to occupy the premises after the repairs or renovations, he or she must give the landlord notice of that fact in accordance with subsection 53 (2) before vacating the rental unit. 2006, c. 17, s. 50 (3).

Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 50 (3) of the Act is repealed and the following substituted: (See: 2023, c. 10, Sched. 7, s. 2)

Notice requirements, repairs or renovations

(3) A notice under clause (1) (c) shall,

(a) inform the tenant that if the tenant wishes to exercise the right of first refusal under section 53 to occupy the premises after the repairs or renovations, the tenant must give the landlord notice of that fact in accordance with subsection 53 (2) before vacating the rental unit; and

(b) in the case of a notice under clause (1) (c) given on or after the day section 2 of Schedule 7 to the *Helping Homebuyers, Protecting Tenants Act, 2023* comes into force, be accompanied by a report prepared by a person who has the prescribed qualifications and that,

(i) states that the repairs or renovations are so extensive that they require vacant possession of the rental unit; and

(ii) meets any other prescribed requirements. 2023, c. 10, Sched. 7, s. 2.

Same, report

(3.1) For greater certainty, a failure to meet the requirements of clause (3) (b) with respect to a notice renders the notice void. 2023, c. 10, Sched. 7, s. 2.

Earlier termination by tenant

(4) A tenant who receives notice of termination under subsection (1) may, at any time before the date specified in the notice, terminate the tenancy, effective on a specified date earlier than the date set out in the landlord's notice. 2006, c. 17, s. 50 (4).

Same

(5) The date for termination specified in the tenant's notice shall be at least 10 days after the date the tenant's notice is given. 2006, c. 17, s. 50 (5).

▼ Section Amendments with date in force (d/m/y)

Conversion to condominium, security of tenure

51 (1) If a part or all of a residential complex becomes subject to a registered declaration and description under the *Condominium Act, 1998* or a predecessor of that Act on or after June 17, 1998, a landlord may not give a notice under section 48 or 49 to a person who was a tenant of a rental unit when it became subject to the registered declaration and description. 2006, c. 17, s. 51 (1).

Proposed units, security of tenure

(2) If a landlord has entered into an agreement of purchase and sale of a rental unit that is a proposed unit under the *Condominium Act, 1998* or a predecessor of that Act, a landlord may not give a notice under section 48 or 49 to the tenant of the rental unit who was the tenant on the date the agreement of purchase and sale was entered into. 2006, c. 17, s. 51 (2).

Non-application

(3) Subsections (1) and (2) do not apply with respect to a residential complex if no rental unit in the complex was rented before July 10, 1986 and all or part of the complex becomes subject to a registered declaration and description under the *Condominium Act, 1998* or a predecessor of that Act before the day that is two years after the day on which the first rental unit in the complex was first rented. 2006, c. 17, s. 51 (3).

Assignee of tenant not included

(4) Despite subsection 95 (8), a reference to a tenant in subsection (1), (2) or (5) does not include a person to whom the tenant subsequently assigns the rental unit. 2006, c. 17, s. 51 (4).

Conversion to condominium, right of first refusal

(5) If a landlord receives an acceptable offer to purchase a condominium unit converted from rented residential premises and still occupied by a tenant who was a tenant on the date of the registration referred to in subsection (1) or an acceptable offer to purchase a rental unit intended to be converted to a condominium unit, the tenant has a right of first refusal to purchase the unit at the price and subject to the terms and conditions in the offer. 2006, c. 17, s. 51 (5).

Same

(6) The landlord shall give the tenant at least 72 hours notice of the offer to purchase the unit before accepting the offer. 2006, c. 17, s. 51 (6).

Exception

(7) Subsection (5) does not apply when,

- (a) the offer to purchase is an offer to purchase more than one unit; or
- (b) the unit has been previously purchased since that registration, but not together with any other units. 2006, c. 17, s. 51 (7).

Compensation, demolition or conversion

52 (1) A landlord shall compensate a tenant in an amount equal to three months rent or offer the tenant another rental unit acceptable to the tenant if,

- (a) the tenant receives notice of termination of the tenancy for the purposes of demolition or conversion to non-residential use;
- (b) the residential complex in which the rental unit is located contains at least five residential units; and
- (c) in the case of a demolition, it was not ordered to be carried out under the authority of any other Act. 2006, c. 17, s. 52.

Same, fewer than five residential units

(2) A landlord shall compensate a tenant in an amount equal to one month's rent or offer the tenant another rental unit acceptable to the tenant if,

- (a) the tenant receives notice of termination of the tenancy for the purposes of demolition or conversion to non-residential use;
- (b) the notice of termination is given on or after the day the *Protecting Tenants and Strengthening Community Housing Act, 2020* receives Royal Assent;
- (c) the residential complex in which the rental unit is located contains fewer than five residential units; and
- (d) in the case of a demolition, it was not ordered to be carried out under the authority of any other Act. 2020, c. 16, Sched. 4, s. 6.

▼ **Section Amendments with date in force (d/m/y)**

Tenant's right of first refusal, repair or renovation

53 (1) A tenant who receives notice of termination of a tenancy for the purpose of repairs or renovations may, in accordance with this section, have a right of first refusal to occupy the rental unit as a tenant when the repairs or renovations are completed. 2006, c. 17, s. 53 (1).

Written notice

(2) A tenant who wishes to have a right of first refusal shall give the landlord notice in writing before vacating the rental unit. 2006, c. 17, s. 53 (2).

Note: On a day to be named by proclamation of the Lieutenant Governor, section 53 of the Act is amended by adding the following subsections: (See: 2023, c. 10, Sched. 7, s. 3)

Requirements for landlord to notify

(2.1) In the case of notice given by a tenant on or after the day section 3 of Schedule 7 to the *Helping Homebuyers, Protecting Tenants Act, 2023* comes into force, the following requirements apply:

- 1. The landlord shall, without delay after receiving the tenant's notice, notify the tenant in writing of the estimated date by which the rental unit is

expected to be ready for occupancy following the repairs or renovations.

2. The landlord shall, without delay after becoming aware of any change in a previously-estimated date by which the rental unit is expected to be ready for occupancy following the repairs or renovations, notify the tenant in writing of the new estimated date.

3. The landlord shall, without delay after the rental unit is ready for occupancy, notify the tenant in writing. 2023, c. 10, Sched. 7, s. 3.

Time for tenant to reoccupy rental unit

(2.2) If a rental unit in respect of which the tenant has a right of first refusal becomes ready for occupancy on or after the day section 3 of Schedule 7 to the *Helping Homebuyers, Protecting Tenants Act, 2023* comes into force, the landlord shall give the tenant at least 60 days after the day the rental unit is ready for occupancy to exercise the right of first refusal to occupy the unit. 2023, c. 10, Sched. 7, s. 3.

Rent to be charged

(3) A tenant who exercises a right of first refusal may reoccupy the rental unit at a rent that is no more than what the landlord could have lawfully charged if there had been no interruption in the tenant's tenancy. 2006, c. 17, s. 53 (3).

Change of address

(4) It is a condition of the tenant's right of first refusal that the tenant inform the landlord in writing of any change of address. 2006, c. 17, s. 53 (4).

▼ Section Amendments with date in force (d/m/y)

Tenant's right to compensation, repair or renovation

54 (1) A landlord shall compensate a tenant who receives notice of termination of a tenancy under section 50 for the purpose of repairs or renovations in an amount equal to three months rent or shall offer the tenant another rental unit acceptable to the tenant if,

(a) the tenant does not give the landlord notice under subsection 53 (2) with respect to the rental unit;

- (b) the residential complex in which the rental unit is located contains at least five residential units; and
- (c) the repair or renovation was not ordered to be carried out under the authority of this or any other Act. 2006, c. 17, s. 54 (1).

Same

(2) A landlord shall compensate a tenant who receives notice of termination of a tenancy under section 50 for the purpose of repairs or renovations in an amount equal to the rent for the lesser of three months and the period the unit is under repair or renovation if,

- (a) the tenant gives the landlord notice under subsection 53 (2) with respect to the rental unit;
- (b) the residential complex in which the rental unit is located contains at least five residential units; and
- (c) the repair or renovation was not ordered to be carried out under the authority of this or any other Act. 2006, c. 17, s. 54 (2).

Same, fewer than five residential units

(3) A landlord shall compensate a tenant who receives notice of termination of a tenancy under section 50 for the purpose of repairs or renovations in an amount equal to one month's rent or shall offer the tenant another rental unit acceptable to the tenant if,

- (a) the tenant does not give the landlord notice under subsection 53 (2) with respect to the rental unit;
- (b) the notice of termination is given on or after the day the *Protecting Tenants and Strengthening Community Housing Act, 2020* receives Royal Assent and section 55 does not apply;
- (c) the residential complex in which the rental unit is located contains fewer than five residential units; and
- (d) the repair or renovation was not ordered to be carried out under the authority of this or any other Act. 2020, c. 16, Sched. 4, s. 7.

Same

(4) A landlord shall compensate a tenant who receives notice of termination of a tenancy under section 50 for the purpose of repairs or renovations in an amount equal to the rent for the lesser of one month and the period the unit is under repair or renovation if,

- (a) the tenant gives the landlord notice under subsection 53 (2) with respect to the rental unit;
- (b) the notice of termination is given on or after the day the *Protecting Tenants and Strengthening Community Housing Act, 2020* receives Royal Assent and section 55 does not apply;
- (c) the residential complex in which the rental unit is located contains fewer than five residential units; and
- (d) the repair or renovation was not ordered to be carried out under the authority of this or any other Act. 2020, c. 16, Sched. 4, s. 7.

▼ Section Amendments with date in force (d/m/y)

Tenant's right to compensation, severance

55 A landlord of a residential complex that is created as a result of a severance shall compensate a tenant of a rental unit in that complex in an amount equal to three months rent or offer the tenant another rental unit acceptable to the tenant if,

- (a) before the severance, the residential complex from which the new residential complex was created had at least five residential units;
- (b) the new residential complex has fewer than five residential units; and
- (c) the landlord gives the tenant a notice of termination under section 50 less than two years after the date of the severance. 2006, c. 17, s. 55.

Compensation under ss. 48.1, 49.1, 52, 54 or 55

55.1 If the landlord is required to compensate a tenant under section 48.1, 49.1, 52, 54 or 55, the landlord shall compensate the tenant no later than on the termination date specified in the notice of termination of the tenancy given by the landlord under section 48, 49 or 50. 2017, c. 13, s. 9; 2020, c. 16, Sched. 4, s. 8.

▼ **Section Amendments with date in force (d/m/y)**

Security of tenure, severance, subdivision

56 Where a rental unit becomes separately conveyable property due to a consent under section 53 of the *Planning Act* or a plan of subdivision under section 51 of that Act, a landlord may not give a notice under section 48 or 49 to a person who was a tenant of the rental unit at the time of the consent or approval. 2006, c. 17, s. 56.

Former tenant's application where notice given in bad faith

57 (1) The Board may make an order described in subsection (3) if, on application by a former tenant of a rental unit, the Board determines that,

(a) the landlord gave a notice of termination under section 48 in bad faith, the former tenant vacated the rental unit as a result of the notice or as a result of an application to or order made by the Board based on the notice, and no person referred to in clause 48 (1) (a), (b), (c) or (d) occupied the rental unit within a reasonable time after the former tenant vacated the rental unit;

(b) the landlord gave a notice of termination under section 49 in bad faith, the former tenant vacated the rental unit as a result of the notice or as a result of an application to or order made by the Board based on the notice, and no person referred to in clause 49 (1) (a), (b), (c) or (d) or 49 (2) (a), (b), (c) or (d) occupied the rental unit within a reasonable time after the former tenant vacated the rental unit; or

(c) the landlord gave a notice of termination under section 50 in bad faith, the former tenant vacated the rental unit as a result of the notice or as a result of an application to or order made by the Board based on the notice, and the landlord did not demolish, convert or repair or renovate the rental unit within a reasonable time after the former tenant vacated the rental unit. 2006, c. 17, s. 57 (1).

Time limitation

(2) No application may be made under subsection (1) more than one year after the former tenant vacated the rental unit. 2006, c. 17, s. 57 (2).

Orders

(3) The orders referred to in subsection (1) are the following:

1. An order that the landlord pay a specified sum to the former tenant for all or any portion of any increased rent that the former tenant has incurred or will incur for a one-year period after vacating the rental unit.

- 1.1 An order that the landlord pay a specified sum to the former tenant as general compensation in an amount not exceeding the equivalent of 12 months of the last rent charged to the former tenant. An order under this paragraph may be made regardless of whether the former tenant has incurred any actual expenses or whether an order is made under paragraph 2.

- 1.2 An order that the landlord pay a specified sum to the former tenant for reasonable out-of-pocket moving, storage and other like expenses that the former tenant has incurred or will incur.

2. An order for an abatement of rent.

3. An order that the landlord pay to the Board an administrative fine not exceeding the greater of \$10,000 and the monetary jurisdiction of the Small Claims Court.

4. Any other order that the Board considers appropriate. 2006, c. 17, s. 57 (3); 2020, c. 16, Sched. 4, s. 9 (1).

Previous determination of good faith

(4) In an application under subsection (1), the Board may find that the landlord gave a notice of termination in bad faith despite a previous finding by the Board to the contrary. 2006, c. 17, s. 57 (4).

Presumption, notice under s. 48

(5) For the purposes of an application under clause (1) (a), it is presumed, unless the contrary is proven on a balance of probabilities, that a landlord gave a notice of termination under section 48 in bad faith, if at any time during the period described in subsection (6) the landlord,

- (a) advertises the rental unit for rent;

- (b) enters into a tenancy agreement in respect of the rental unit with someone